

COUR PERMANENTE DE JUSTICE INTERNATIONALE

SÉRIE A/B

ARRÊTS, ORDONNANCES ET AVIS CONSULTATIFS

FASCICULE N° 65

COMPATIBILITÉ DE CERTAINS
DÉCRETS-LOIS DANTZIKOIS AVEC LA
CONSTITUTION DE LA VILLE LIBRE

AVIS CONSULTATIF DU 4 DÉCEMBRE 1935

XXXV^{me} SESSION

1935

XXXVth SESSION

ADVISORY OPINION OF DECEMBER 4th, 1935

PERMANENT COURT OF INTERNATIONAL JUSTICE

SERIES A./B.

JUDGMENTS, ORDERS AND ADVISORY OPINIONS

FASCICULE No. 65

CONSISTENCY OF CERTAIN
DANZIG LEGISLATIVE DECREES WITH
THE CONSTITUTION OF THE FREE CITY

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CONSISTENCY OF CERTAIN
DANZIG LEGISLATIVE DECREES WITH
THE CONSTITUTION OF THE FREE CITY

The international element in the question raised as to the constitutionality of the decrees of August 29th, 1935 (Ishii report of Nov. 17th, 1920; Advisory Opinion of the Court of Feb. 4th, 1932).

Changes made by these decrees in the penal law previously in force.

Principles of the Constitution of Danzig: the Free City is a Rechtsstaat (State governed by the rule of law); the Constitution guarantees the fundamental rights of individuals (Art. 71, 74, 75 and 79).

Inconsistency of the decrees with this latter principle and with the provisions which express it.

ADVISORY OPINION.

Before: Sir CECIL HURST, President; M. GUERRERO, Vice-President; Baron ROLIN-JAEQUEMYS, Count ROSTWOROWSKI, MM. FROMAGEOT, DE BUSTAMANTE, ALTAMIRA, ANZILOTTI, URRUTIA, Jhr. VAN EYSINGA, MM. WANG, NAGAOKA, Judges.

The Court, composed as above, gives the following opinion :

On September 23rd, 1935, the Council of the League of Nations adopted the following Resolution :

“The Council of the League of Nations,

Having considered the communication from the High Commissioner of September 7th, 1935, by which the High Commissioner transmitted to the Council :

(a) a petition dated September 4th, 1935, and signed on behalf of the German National members of the Danzig Popular Assembly, the Social-Democrat members of the Popular Assembly, and the Centre Party and the Centre Party members of the Popular Assembly, which protests against two legislative decrees of August 29th, 1935, amending the Danzig Penal Code and the Danzig Code of Penal Procedure ;

(b) the text of the said decrees ;

(c) a communication dated September 7th, 1935, from the Senate of the Free City of Danzig containing observations on the said petition,

Requests the Permanent Court of International Justice to give an advisory opinion on the question whether the said decrees are consistent with the Constitution of Danzig, or, on the contrary, violate any of the provisions or principles of that Constitution.

The Council requests that, if possible, the Court will give its opinion in time to enable it to be considered by the Council at its session of January 1936.

The Secretary-General is authorized to submit this request to the Court, together with all the relevant documents, to afford the necessary assistance in the examination of the question and if necessary to arrange to be represented before the Court.”

In accordance with this Resolution, the Secretary-General of the League of Nations, on September 27th, 1935, transmitted to the Court a Request for an advisory opinion in the following terms :

“To the Permanent Court of International Justice.

The Secretary-General of the League of Nations, in pursuance of the Council Resolution of September 23rd, 1935, and in virtue of the authorization given by the Council, has the honour to submit to the Permanent Court of International Justice an Application requesting the Court, in accordance with Article 14 of the Covenant, to give an advisory opinion to the Council on the question which is referred to the Court by the Resolution of September 23rd, 1935 (see attached text).

The Secretary-General will be prepared to furnish any assistance which the Court may require in the examination of this matter, and will, if necessary, arrange to be represented before the Court.”

The Request was registered on September 30th, 1935, in the Registry of the Court. To the Request were appended a number of documents¹ relating to the petition of September 4th, 1935, referred to in the Council Resolution of September 23rd, and to the position taken up by the authorities of the League in regard to that petition.

In conformity with Article 73, No. 1, paragraph 1, of the Rules, the Request was communicated to Members of the League (through the Secretary-General of the League of Nations) and to States entitled to appear before the Court. Furthermore, the Registrar, by a note dated October 4th, 1935, sent to the Free City of Danzig, which was regarded by the President—the Court not being in session—as a State admitted to appear before the Court and likely to be able to furnish information on the question referred to the Court for advisory opinion, the special and direct communication mentioned in Article 73, No. 1, paragraph 2, of the Rules.

By an Order made on October 4th, 1935, the President of the Court—the latter not being in session—fixed October 22nd, 1935, as the date by which a written statement might be filed on behalf of the Free City. On receipt of a request for an extension from the Senate of the Free City, this time-limit was extended until October 26th by an Order made on October 10th, 1935. Furthermore, on October 14th, 1935, the Registrar wrote to the Secretary-General of the League of Nations, in accordance with the instructions of the President of the Court, requesting him to inform the authors of the petition of September 4th, 1935, through the appropriate channel, that if they desired to supplement the statement contained in the petition, the Court would be prepared to receive an explanatory note from them, provided that it was filed with the Registry not later than October 26th, 1935.

Before the expiry of the time-limits thus fixed, the Court received a written statement submitted on behalf of the Senate of the Free City and two documents sent by the petitioners with the request that their contents should be regarded and treated as constituting the explanatory note mentioned in the letter of the Registrar to the Secretary-General dated October 14th, 1935.

On October 4th, 1935, the Senate of the Free City had been informed that the Court would be prepared to hear at a public sitting an oral statement presented on its behalf by a duly authorized representative. The Senate subsequently appointed as Agent Professor Dr. Graf Gleispach and as Counsel Professor Dr. Grimm, and the Court heard the statements presented by them at public sittings held on October 30th and 31st and

¹ See list in the Annex.

November 1st. At the conclusion of the sitting on November 1st, the President declared the hearings closed, subject to the right of the Court to ask the representatives of the Free City for further information or explanations or to procure them by other means at its disposal.

By a letter of October 5th, 1935, the Senate of the Free City of Danzig had requested the Court to authorize it to appoint a judge *ad hoc* to sit in the case. At the invitation of the Court, the arguments in support of this request were fully expounded by the Agent for the Free City at the hearing on October 30th. On the following day, the President of the Court announced at the hearing that, after deliberation, the Court had decided that there was no ground for granting the request made on behalf of the Free City and that this decision would be embodied in an Order which would be drawn up later. The text of this Order, which is dated October 31st, 1935, is annexed to the present Advisory Opinion¹.

In addition to the written and oral statements above mentioned, and the documents transmitted by the Secretariat of the League of Nations, the Court has had before it a number of documents transmitted by the Free City or collected by the Registry².

The submission of the case being in all respects regular, these are the circumstances in which the Court is now called upon to give its opinion.

* * *

On August 29th, 1935, the Senate of the Free City adopted two decrees, which were promulgated on August 31st and came into force on September 1st, 1935; one of these decrees related to the criminal law and the other to the law of criminal procedure and the organization of the courts of the Free City.

The first Article of the decree "amending certain provisions of the Penal Code"³ may be rendered in English as follows:

¹ See p. 32.

² „ list in the Annex.

³ „Artikel 1. — Rechtsschöpfung durch entsprechende Anwendung der Strafgesetze.

„Die §§ 2 und 2 a des Strafgesetzbuchs erhalten folgende Fassung :

„§ 2. — Bestraft wird, wer eine Tat begeht, die das Gesetz für strafbar erklärt oder die nach dem Grundgedanken eines Strafgesetzes und nach gesundem Volksempfinden Bestrafung verdient. Findet auf die Tat kein bestimmtes Strafgesetz unmittelbar Anwendung, so wird die Tat nach dem Gesetz bestraft, dessen Grundgedanke auf sie am besten zutrifft.

„2 a. —“

“Article I.—Creation of law by the application of penal laws by analogy.

Articles 2 and 2 *a* of the Penal Code are amended as follows :

Article 2.—Any person who commits an act which the law declares to be punishable or which is deserving of penalty according to the fundamental conceptions of a penal law and sound popular feeling, shall be punished. If there is no penal law directly covering an act, it shall be punished under the law of which the fundamental conception applies most nearly to the said act.

Article 2 *a*.—”

It is unnecessary to set out here the other clauses contained in this decree.

Prior to September 1st, 1935, Article 2, paragraph 1, of the Penal Code applicable at Danzig was couched¹ in terms which may be rendered in English as follows :

“Article 2.—An act is only punishable if the penalty applicable to it has been prescribed by a law in force before the commission of the act.”

The decree “amending certain provisions of the Code of Criminal Procedure and of the law concerning the organization of the courts” contains an Article I as to a “Wider latitude accorded to the judge”; Section I of this Article, which deals with the “Creation of law by the application of penal laws by analogy”, contains a paragraph (*a*)² which may be rendered in English as follows :

*“(a) The following provisions shall be inserted in the Code of Criminal Procedure and shall constitute Article 170 *a* and Article 267 *a*.*

¹ „§ 2. — Eine Handlung kann nur dann mit einer Strafe belegt werden wenn diese Strafe gesetzlich bestimmt war, bevor die Handlung begangen wurde.“

² „a) In die Strafprozessordnung werden als § 170 *a* und als § 267 *a* folgende Vorschriften eingefügt :

„§ 170 *a*. — Ist eine Tat, die nach gesundem Volksempfinden Bestrafung verdient, im Gesetz nicht für strafbar erklärt, so hat die Staatsanwaltschaft zu prüfen, ob auf die Tat der Grundgedanke eines Strafgesetzes zutrifft und ob durch entsprechende Anwendung dieses Strafgesetzes der Gerechtigkeit zum Siege verholfen werden kann (§ 2 des Strafgesetzbuchs).

„§ 267 *a* — Ergibt die Hauptverhandlung, dass der Angeklagte eine Tat begangen hat, die nach gesundem Volksempfinden Bestrafung verdient, die aber im Gesetz nicht für strafbar erklärt ist, so hat das Gericht zu prüfen, ob auf die Tat der Grundgedanke eines Strafgesetzes zutrifft und ob durch entsprechende Anwendung dieses Strafgesetzes der Gerechtigkeit zum Siege verholfen werden kann (§ 2 des Strafgesetzbuchs).

„§ 265 Abs. I gilt entsprechend.“

Article 170 a.—If an act which, according to sound popular feeling, is deserving of penalty is not made punishable by law, the Public Prosecutor shall consider whether the fundamental conception of any penal law covers the said act and whether it is possible to cause justice to prevail by the application of such law by analogy (Art. 2 of the Penal Code).

Article 267 a.—If, in the course of the trial, it appears that the accused has committed an act which, according to sound popular feeling, is deserving of penalty but which is not made punishable by law, the Court must satisfy itself that the fundamental conception of a penal law applies to the act and that it is possible to cause justice to prevail by the application of such law by analogy (Penal Code, Art. 2).

Article 265, paragraph 1, shall apply *mutatis mutandis*."

Together with the decrees of August 29th, 1935, an ordinance was promulgated amending the General Regulations of the Senate dated October 11th, 1929, concerning the communication *ex officio* of judgments in criminal cases; by this ordinance, a new clause¹ was added under No. 9 *a* to these General Regulations; this clause may be rendered in English as follows:

"Judgments which inflict a penalty on the ground that, according to the fundamental conception of some penal clause and according to sound popular feeling, the act deserves punishment (Penal Code, Art. 2, new version); judgments in which, contrary to the submissions of the Public Prosecutor, conviction in such circumstances has been refused, and judgments in which recourse has been had to conviction under alternative charges (Penal Code, Art. 2 *b*) shall be communicated in duplicate (with a statement of the reasons) to the Department of Justice of the Senate."

The above-mentioned decrees of August 29th, 1935, were issued under the "Law for the Relief of the Distress of the Population and the State" of June 24th, 1933; this law, which was passed by the Senate and by the Diet of the Free City, was promulgated on June 26th, 1933. The decrees of August 29th, 1935, cite in their preambles certain clauses of this law², which is usually described as an "Enabling Law"; these clauses may be rendered in English as follows:

¹ „§ 9 a. — Urteile, in denen Bestrafung erfolgt ist, weil die Tat nach dem Grundgedanken eines Strafgesetzes und nach gesundem Volksempfinden Bestrafung verdient (§ 2 St. G. B. n. F.) oder in denen eine solche Bestrafung entgegen dem Antrage der Staatsanwaltschaft abgelehnt ist, sowie Urteile, in denen eine Wahlfeststellung getroffen ist (§ 2 b St. G. B.), sind der Justizabteilung des Senats in 2 Stücken einzureichen (mit Gründen)."

² „§ 1. — Der Senat der Freien Stadt Danzig wird ermächtigt, auf den nachstehend angeführten Gebieten im Rahmen der Verfassung und innerhalb der sich aus § 2 dieses Gesetzes ergebenden Grenzen Massnahmen mit Gesetzeskraft zu erlassen, denen der Volkstag hiermit zustimmt.

... ..

"Article 1.—The Senate of the Free City is empowered to take measures (decrees) having force of law and which the Diet hereby approves in advance, in regard to the matters set out below, within the frame of the Constitution and within the limits laid down in Article 2 of this law.

9. Measures designed to enhance public security and order.

22. The modification of the judicial system, particularly as regards the organization and jurisdiction of the Courts, and likewise of the provisions relating to the presence on the Bench of lay assessors.

25. The modification of civil and criminal procedure and of the law of bankruptcy and compositions including the provisions regarding legal costs and fees (also those of barristers and solicitors) as well as the whole of the law relating to executions and liens.

„9. Massnahmen zur Erhöhung der öffentlichen Sicherheit und Ordnung.

„22. Änderung der Gerichtsverfassung, insbesondere bezüglich der Organisation und Zuständigkeit der Gerichte und der Bestimmungen über die Besetzung mit Laienbeisitzern.

„25. Änderung des Zivil- und Strafprozesses sowie des Konkurs- und Vergleichsrechts einschliesslich der kosten- und gebührenrechtlichen Vorschriften (auch für Rechtsanwälte und Notare) und des gesamten Vollstreckungs- und Pfändungsrechts.

„28. Reform des Strafrechts.

„§ 2. — Der Senat darf von der im § 1 bezeichneten Ermächtigung nur Gebrauch machen zum Zweck

„a) der Aufrechterhaltung der Ordnung der Finanzen des Staates, der Gemeinden und der Gemeindeverbände sowie der öffentlich-rechtlichen Verbände,

„b) der Behebung finanzieller, wirtschaftlicher, sozialer, kultureller oder politischer Notstände,

„c) der Erzielung von Ersparnissen,

„d) der Anpassung an die rechtliche Regelung in den Nachbarstaaten,

„e) der Aufrechterhaltung und des Ausbaues der öffentlichen Ordnung und Sicherheit,

„f) der Vereinfachung und Fortentwicklung der Verwaltung und der Rechtspflege,

„g) der Behebung der Arbeitslosigkeit.

„In diesem Rahmen sind Strafandrohungen zulässig.“

28. The reform of the penal law.

Article 2.—The Senate may only employ the powers conferred by Article 1 for the following purposes:

- (a) the maintenance of order in the finances of the State, the communes, the communal organizations and public bodies;
- (b) the relief of financial, economic, social, cultural or political emergencies;
- (c) the effecting of economies;
- (d) the adjustment of the law to that in force in neighbouring States;
- (e) the maintenance and enhancement of public order and security;
- (f) the simplification and development of the administrative and judicial systems;
- (g) the relief of unemployment.

Within the limits thus defined, the provision of penalties is authorized."

Prior to June 24th, 1933, laws delegating certain legislative powers to the Senate covering various specified subjects and expressly described as "Enabling Laws" had already been promulgated, namely the laws of November 29th, 1926, January 23rd, 1931, June 30th, 1931, September 1st, 1931, and June 28th, 1932; laws had already been published in 1921 and 1923 empowering the Senate to legislate by decree in regard to certain matters.

On September 4th, 1935, the National German, the Centre and the Social-Democrat Parties at Danzig presented a petition to the High Commissioner of the League of Nations contending that the amendments made in the Penal Code and Code of Criminal Procedure under the decrees and ordinance of August 29th, 1935, fundamentally altered the whole system of the administration of justice in criminal cases and opened the doors wide to arbitrary decisions; the introduction of these amendments constituted, in the submission of the petitioners, a violation both of Article 73 and of Article 74 of the Constitution of the Free City. The petition concluded with a request to the High Commissioner to support the efforts of the petitioners "for the maintenance of legal and constitutional conditions in the Free City".

The High Commissioner, in a letter dated September 5th, 1935, invited the Senate as soon as possible to present any observations which it might wish to make in regard to the petition.

On September 7th, 1935, the High Commissioner sent to the Council of the League of Nations the text of the decrees and the ordinance of August 29th, 1935, together with the petition and the observations of the Danzig Senate.

The Council considered the question on September 23rd, 1935, together with two other questions affecting the Free City and concerning the consistency with the Constitution of Danzig of certain decrees issued under the above-mentioned law of June 24th, 1933, and of certain administrative measures. These latter questions were settled by the Council, but as regards the question raised in connection with the promulgation of the decrees amending the Danzig Penal Law, the Council had before it a report by the representative of the United Kingdom expressing doubt in two respects as to the constitutionality of the decrees. These doubts concerned, first the question whether the law of June 24th, 1933, really conferred on the Senate power to undertake the reform of the penal law contemplated by the decrees, and, secondly, the question of the consistency of the contents of the decrees with those clauses of the Constitution conferring fundamental rights upon citizens of the Free City. The Rapporteur proposed, and the Council adopted, the Resolution reproduced above, to the effect that the Court should be asked to give an advisory opinion.

* * *

The Constitution of the Free City occupies a special position in regard to the League of Nations. In the first place, it was drawn up by duly appointed representatives of the Free City in agreement with a High Commissioner appointed by the League of Nations, as provided in Article 103 of the Treaty of Versailles of June 28th, 1919. Secondly, it was placed under the guarantee of the League, as provided in the same Article of that Treaty. This guarantee implies, in the words of the report submitted to the Council on November 17th, 1920, by the Japanese representative, Viscount Ishii: "(1) that the Constitution will have to obtain the approval of the League of Nations; (2) that the Constitution can only be changed with the permission of the League of Nations, and (3) that the constitutional life of the Free City of Danzig must always be in accordance with the terms of this Constitution".

In this connection, the Court may recall the view which it has already expressed in its Advisory Opinion of February 4th, 1932, concerning the treatment of Polish nationals in the territory of Danzig:

"The League, as guarantor of the Constitution, is therefore concerned not merely with the text of the Constitution, but also with the proper application of it. It was at the request of the League that an article was inserted in the definitive text of the Constitution as Article 42, reading:

‘The Senate of the Free City shall furnish to the League of Nations at any time upon the request of the latter, official information regarding the public affairs of the Free City.’

The object of this provision is obvious. It is to enable the League to exercise its rights and fulfil its duties concerning *inter alia* the actual application of the Constitution.

From what has been said above, it follows that the League of Nations, as guarantor of the Constitution of the Free City, has the right—which, in practice, it exercises through the Council—as well as the duty, to intervene in the event of an erroneous application by Danzig of its Constitution.”

It is clear that, though the interpretation of the Danzig Constitution is primarily an internal question of the Free City, it may involve the guarantee of the League of Nations as interpreted by the Council and by the Court. It is also clear that, when the constitutionality of decrees issued by the Senate is challenged, this may raise questions the solution of which depends upon the interpretation of the Constitution. It follows that a petition like the petition submitted to the High Commissioner on September 4th, 1935, by certain political parties in Danzig necessarily involves the League’s guarantee of the Danzig Constitution. This suffices to establish the international element in the problem raised by the petition which led up to the Council’s Resolution asking for an advisory opinion. This element is not excluded by the fact that, in order to give the opinion for which it is asked, the Court will have to examine municipal legislation of the Free City, including the Danzig Constitution.

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The question submitted to the Court is: “whether the said decrees [i.e. the decrees of August 29th, 1935] are consistent with the Constitution of Danzig, or, on the contrary, violate any of the provisions or principles of that Constitution”.

This question must be answered on the basis of a comparison between the text of the decrees, on the one hand, and the text of the Constitution and the principles on which it is founded and which are expressed in its various provisions, on the other hand. What the Court has to examine is whether the decrees, as they stand, are necessarily in conflict with the Constitution so that the very enactment of the decrees constituted a violation thereof, and that they cannot be applied without violating the letter or the spirit of the Constitution.

As regards the decrees, it should be observed at the outset that the first contains twelve articles relating to divers matters of substantive criminal law, and the second six articles concerning criminal procedure and the judicial organization of the Free City. From the documents before the Court it is manifest that in the present case only certain provisions of the two decrees concerning the criminal character of an act are in question, namely, Article I, paragraph 1, of the first decree, which modifies Article 2 of the Penal Code, and Article I of the second decree, which introduces new Articles 170 *a* and 267 *a* into the Code of Penal Procedure. The relevant texts have been reproduced above. The Court will therefore confine itself to an examination of these provisions, leaving aside the remainder of the decrees.

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Before proceeding to the examination of the decrees from the constitutional point of view, it may be well to note the changes which they have introduced in the criminal law of Danzig.

The Penal Code in force in Danzig prior to the promulgation of the decrees, in its Article 2, paragraph 1, provided: "An act is only punishable if the penalty applicable to it was already prescribed by a law in force before the commission of the act." This provision gives expression to the well-known twofold maxim: *Nullum crimen sine lege*, and *Nulla pœna sine lege*. The law alone determines and defines an offence. The law alone decrees the penalty. A penalty cannot be inflicted in a given case if it is not decreed by the law in respect of that case. A penalty decreed by the law for a particular case cannot be inflicted in another case. In other words, criminal laws may not be applied by analogy.

The first decree modifying the Penal Code lays down the rule that an act is punishable:

(1) where it is declared by law to be punishable, and

(2) where, according to the fundamental idea of a penal law and according to sound popular feeling, it deserves punishment. Where there is no particular penal law applicable to the act, it shall be punished in virtue of the law whose fundamental conception applies most nearly.

No. 1 requires no comment. No. 2 is an innovation which deserves careful examination. Where there is no legal provision expressly applicable, a person may, according to the new penal provision, be punished provided that two conditions are fulfilled: (*a*) the act must deserve punishment according to the fundamental idea of a penal law; and (*b*) the act must deserve punishment according to sound popular feeling.

The procedure for applying this rule is laid down in the second decree, in which the two conditions are prescribed in the reverse order. That is to say, the Public Prosecutor (Art. 170 *a*) and the tribunal (Art. 267 *a*), in the case of an act not declared punishable by law, must first apply the criterion of sound popular feeling, and, if it is found that the act deserves punishment, must then examine whether the fundamental idea of a penal law also requires that it should be punished.

The object of these new provisions is stated to be to enable the judge to create law to fill up gaps in the penal legislation. This may be seen from the title of Article I of the first decree: "Creation of law [*Rechtsschöpfung*] by the application of penal laws by analogy", and of Article I of the second decree: "Wider latitude accorded to judges. I. Creation of law [*Rechtsschöpfung*] by the application of penal laws by analogy."

The Agent for the Free City contends that, according to the new conception of penal law, real justice will take the place of formal justice, and that henceforth the rule will be *Nullum crimen sine pœna* instead of *Nullum crimen sine lege* and *Nulla pœna sine lege*. Detailed explanations have been given on behalf of the Senate of the Free City concerning the advantages of the new penological idea over the old. With this the Court is not concerned. The sole question for it is whether the two decrees violate any of the provisions or principles of the Constitution.

Under the two decrees a person may be prosecuted and punished not only in virtue of an express provision of the law, as heretofore, but also in accordance with the fundamental idea of a law and in accordance with sound popular feeling.

Whatever may be the relation between the two elements—whether it be, as suggested by the wording of the first decree, that the act to be punished must in any case fall within the fundamental idea of the law and yet escape punishment unless condemned by sound popular feeling, or whether it be, as suggested by the wording of the second decree, that attention is first to be paid to the question of what is condemned by sound popular feeling but no prosecution initiated or punishment imposed unless the act falls within the fundamental idea of some penal law—it is clear that the decision whether an act does or does not fall within the fundamental idea of a penal law, and also whether or not that act is condemned by sound popular feeling, is left to the individual judge or to the Public Prosecutor to determine. It is not a question of applying the text of the law itself—which presumably will be in terms equally clear both to the judge and to the person who is accused. It is a question of applying what the judge (or the

Public Prosecutor) believes to be in accordance with the fundamental idea of the law, and what the judge (or the Public Prosecutor) believes to be condemned by sound popular feeling. A judge's belief as to what was the intention which underlay a law is essentially a matter of individual appreciation of the facts, so is his opinion as to what is condemned by sound popular feeling. Instead of applying a penal law equally clear to both the judge and the party accused, as was the case under the criminal law previously in force at Danzig, there is the possibility under the new decrees that a man may find himself placed on trial and punished for an act which the law did not enable him to know was an offence, because its criminality depends entirely upon the appreciation of the situation by the Public Prosecutor and by the judge. Accordingly, a system in which the criminal character of an act and the penalty attached to it will be known to the judge alone replaces a system in which this knowledge was equally open to both the judge and the accused.

Nor should it be overlooked that an individual opinion as to what was the intention which underlay a law, or an individual opinion as to what is condemned by sound popular feeling, will vary from man to man. Sound popular feeling is a very elusive standard. It was defined by the Agent of the Free City as "*une conviction correspondant aux strictes exigences de la morale*". This definition covers the whole extra-legal field of what is right and what is wrong according to one's ethical code or religious sentiments. Hence it follows that sound popular feeling may mean different rules of conduct in the minds of those who are to act in accordance therewith. It is for this reason that legislation is necessary in order to lay down the precise limits between *morale* and law. An alleged test of sound popular feeling, even when coupled with the condition providing for the application of the fundamental idea of a penal law, could not afford to individuals any sufficient indication of the limits beyond which their acts are punishable.

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The question put by the Council being whether the decrees of August 29th, 1935, are consistent with the Constitution of Danzig or, on the contrary, violate any of the provisions or principles of that Constitution, it should in the first place be observed that any inconsistency between the decrees and the Constitution may be due to one or more of the three following causes: the terms of the decrees may be inconsistent with the articles of the Constitution or with its principles; the decrees may overstep the limits of the powers given to the Senate

by the law of June 24th, 1933; and lastly that law may itself be contrary to the Constitution.

The Court will not consider this last-mentioned point, as no question has been specifically put to it on the subject. As regards the question whether the decrees are covered by the law of June 24th, 1933, that question would only arise if the Court came to the conclusion that the terms of the decrees do not violate any clause or principle of the Constitution; for, if any article or principle of the Constitution were violated by the contents of the decrees, that would suffice to show that the latter are not consistent with it.

For this reason, the Court will consider the question before it from the point of view of the contents of the decrees.

Certain principles emerge from the articles of the Constitution of Danzig. In the first place it is to be observed that the Constitution endows the Free City with a form of government under which all organs of the State are bound to keep within the confines of the law (*Rechtsstaat*, State governed by the rule of law). In the second place, it is to be noted that the Constitution consists of two parts, the first of which, entitled "Organization of the State" (*Aufbau des Staates*), concerns the structure of the State, whilst the second lays down *inter alia* a series of "Fundamental rights and duties" (*Grundrechte und Grundpflichten*). The free enjoyment of these rights, within the bounds of the law, constitutes one of the principles of the Constitution of the Free City.

The principle according to which the constitutional system of the Free City corresponds to that of a State governed by the rule of law (*Rechtsstaat*) is shown in the first place by the manner in which the Senate must perform its duties. Though it conducts the administration of the State, and issues regulations or otherwise provides for the safety and welfare of the State upon its own authority, it must always, in performing these important functions, keep within the bounds of the Constitution and the law (Art. 39, *b* and *f*).

Danzig's character as a State governed by the rule of law (*Rechtsstaat*) is also and more particularly revealed in Part II (Art. 71 *et seq.*) of the Constitution, which deals with fundamental rights and duties. In this case only the fundamental rights need be considered.

Provisions concerning such rights occur in most of the constitutions drawn up since the beginning of the nineteenth century. They are designed to fix the position of the individual in the community, and to give him the safeguards which are considered necessary for his protection against the State. It is in that sense that the words "fundamental rights" (*Grundrechte*) have always been understood.

The Danzig Constitution lays very special emphasis on the importance and the inviolability of the individual liberties which ensue from these fundamental rights. Article 71 lays down that "Fundamental rights and duties shall govern the direction and determine the scope of legislation, the administration of justice and the conduct of public affairs [*Verwaltung*]." All the organs of the State dealt with in Part I of the Constitution are therefore required to guide themselves by these fundamental rights which, at the same time, set bounds to their activities.

The object of a large number of the articles of Part II of the Constitution is to confer essential individual rights. Thus Article 74 provides that the liberty of the person shall be inviolable; Article 75 gives freedom of movement within the Free City, the right to sojourn and to settle there, to acquire real property, to earn a living in any way; Article 79 confers upon individuals the right to express their opinion by word, in writing or in any other manner; Articles 84 and 85 confer a right of assembly and association. Generally speaking, this Part II of the Constitution embraces practically all the aspects of the life of an individual in his public and private activities.

Moreover, these provisions do not all confer absolute and unrestricted rights. The Constitution provides that, in the general interests of the community, some of the liberties of the individual may be restricted. But such restrictions can only be imposed by law. This is stated in a large number of the articles in Part II of the Constitution, and this is precisely the import of the guarantee afforded to these liberties or fundamental rights. This appears more particularly in the three articles which have been mentioned and which refer to essential aspects of liberty: personal liberty, limitation or deprivation of which may not be imposed by public authority save in virtue of a law (Art. 74);—the right of sojourn, settlement and movement, a right which may not be curtailed without legal sanction (Article 75);—freedom to express opinion within the bounds of the law; no disadvantage of any kind may be imposed on a person "on account of his exercise of this right" (Art. 79).

The representatives of the Free City contended that the decrees of August 29th, 1935, did not involve any violation of the Constitution of Danzig for the following reason. The decrees—they argued—had legal force under the law of June 24th, 1933, in virtue of which they had been issued; the articles of the Constitution conferring liberties on individuals allow restrictions to be imposed by law; accordingly, the restrictions introduced by the decrees of August 29th, 1935,

were imposed in virtue of a law and therefore complied with the requirements of the Constitution.

The Court cannot accept this argument. The word "law", in these articles of the Constitution, means not merely a legislative act, but also one the terms of which are in conformity with the Constitution and which, in particular, respects the principles on which the Constitution is based. Since, as has been explained above, the Court is now considering whether the decrees are consistent with the Constitution, not from the point of view of their form or legal basis, but solely from that of their contents, it will not stop to examine whether the decrees fulfil the first of these conditions. As regards the second condition, the Court observes that among the principles which the decrees are bound to respect is, as already pointed out, the principle which determines the position of the individual by according him certain fundamental rights (*Grundrechte*). The rule that a law is required in order to restrict the liberties provided for in the Constitution therefore involves the consequence that the law itself must define the conditions in which such restrictions of liberties are imposed. If this were not so, i.e. if a law could simply give a judge power to deprive a person of his liberty, without defining the circumstances in which his liberty might be forfeited, it could render entirely nugatory a provision such as that contained in Article 74 of the Constitution. But, as the Court has already explained, the decrees of August 29th, 1935, so far from supplying any such definition, empower a judge to deprive a person of his liberty even for an act not prohibited by the law, provided that he relies on the fundamental idea of a penal law and on sound popular feeling. These decrees therefore transfer to the judge an important function which, owing to its intrinsic character, the Constitution intended to reserve to the law so as to safeguard individual liberty from any arbitrary encroachment on the part of the authorities of the State.

It is true that a criminal law does not always regulate all details. By employing a system of general definition, it sometimes leaves the judge not only to interpret it, but also to determine how to apply it. The question as to the point beyond which this method comes in conflict with the principle that fundamental rights may not be restricted except by law may not be easy to solve. But there are some cases in which the discretionary power left to the judge is too wide to allow of any doubt but that it exceeds these limits. It is such a case which confronts the Court in the present proceedings.

The problem of the repression of crime may be approached from two different standpoints, that of the individual and that of the community. From the former standpoint, the object

is to protect the individual against the State: this object finds its expression in the maxim *Nulla pœna sine lege*. From the second standpoint, the object is to protect the community against the criminal, the basic principle being the notion *Nullum crimen sine pœna*. The decrees of August 29th, 1935, are based on the second of these conceptions; the Danzig Constitution is based upon the former. For this Constitution takes as its starting-point the fundamental rights of the individual; these rights may indeed be restricted, as already pointed out, in the general public interest, but only in virtue of a law which must itself specify the conditions of such restriction, and, in particular, determine the limit beyond which an act can no longer be justified as an exercise of a fundamental liberty and becomes a punishable offence. It must be possible for the individual to know, beforehand, whether his acts are lawful or liable to punishment.

To sum up, the Court holds that the decrees of August 29th, 1935, are not consistent with the guarantees which Part II of the Danzig Constitution provides for fundamental rights; and in particular they are not consistent with Articles 74, 75 and 79. Furthermore, the Court holds that the decrees violate the principles on which, as already explained, Part II of the Constitution is founded.

FOR THESE REASONS,

The Court,

by nine votes to three,

is of opinion that the two decrees of August 29th, 1935, are not consistent with the Constitution of the Free City of Danzig, and that they violate certain provisions and certain principles thereof.

Done in English and French, the English text being authoritative, at the Peace Palace, The Hague, this fourth day of December, one thousand nine hundred and thirty-five, in two copies, one of which is to be deposited in the archives of the Court and the other to be forwarded to the Council of the League of Nations.

(Signed) CECIL J. B. HURST,
President.

(Signed) Å. HAMMARSKJÖLD,
Registrar.

Count ROSTWOROWSKI, M. ANZILOTTI and M. NAGAOKA, Judges, declare that they are unable to concur in the Opinion given by the Court and, availing themselves of the right conferred on them by Article 71, paragraph 3, of the Rules, have appended thereto the individual opinions which follow.

(Initialed) C. J. B. H.

(Initialed) Å. H.

DECLARATION BY COUNT ROSTWOROWSKI.

[*Translation.*]

Count ROSTWOROWSKI, Judge, declares that he is unable to concur in the Opinion given, because, in his view, the two decrees in question of 1935 are not, *in substance*, inconsistent with the Constitution of the Free City of Danzig and do not violate any of its provisions or conflict with any of its principles.

On the other hand, he considers that these same decrees of 1935, having been issued by the Senate alone, are, as regards the *form* of their enactment, contrary to Article 43, paragraph 1, of the Constitution, which requires that legislation must receive the concurrent assent of the *Volkstag* and the Senate. —The argument based on the Enabling Law of 1933 is not, in his view, sound, since the law of 1933 itself, in effect, profoundly modifies the constitutional régime of the Free City. There being no provision in the Constitution authorizing this law, it appears to be a deviation from the terms of the Constitution which can only be made lawful by means of the express approval of the League of Nations. In the absence of such approval, the law of 1933 does not suffice to render the impugned decrees of 1935 lawful and accordingly they remain, as regards the form of their enactment, inconsistent with the Constitution of Danzig.

(Signed) M. ROSTWOROWSKI.